

HOUSE No. 872

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth P. Sweezey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act further regulating the recall of elected officials in the town of Pembroke.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/13/2025</i>

HOUSE No. 872

By Representative Sweezey of Duxbury, a petition (accompanied by bill, House, No. 872) of Kenneth P. Sweezey (by vote of the town) for legislation to further regulate the recall of elected officials in the town of Pembroke. Election Laws. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3983 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act further regulating the recall of elected officials in the town of Pembroke.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Chapter 356 of the acts of 1983 is hereby amended by striking out the
2 words “fourteen days” in the last sentence of the first paragraph of section 2 and inserting in
3 place thereof the following words:- thirty days.

4 SECTION 2: Said section 2 of said chapter 356 is hereby amended by striking out the
5 words “twenty per cent” in the last sentence of the first paragraph of section 2 and inserting in
6 place there of the following words:- ten per cent.

7 SECTION 3: Section 3 of said chapter 356 is hereby amended by striking out the first
8 sentence and inserting in place thereof the following sentence:- If the petition shall be found and
9 certified by the town clerk to be sufficient they shall submit the same with their certificate to the

10 select board without delay, and said board shall forthwith give written notice of the receipt of the
11 certificate to the officer sought to be recalled and shall, if the officer does not resign within five
12 days thereafter, order the recall election to be held at the next scheduled town election, provided
13 the next town election is scheduled more than sixty-four days from the date said officer resigns
14 or refuses to resign.

15 SECTION 5: The fourth sentence of section 6 of said chapter 356 is hereby amended by
16 striking out the words “; provided that at least forty per cent of those entitled to vote shall have
17 voted”.

18 SECTION 6: This act shall take effect upon its passage.